

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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DAVID JOHNSON.

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
JOSEPH REYES (Tax # 955373), POLICE OFFICER
LALEHAN SINGH (Tax # 955499), POLICE SERGEANT
THOMAS MASSEI (Tax # 942096) and POLICE
OFFICERS JOHN DOE 1-10,

The plaintiff resides at:
Kings County, New York

Defendants.

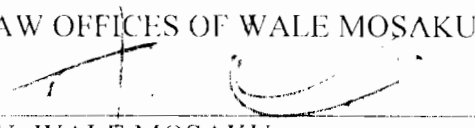
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
August 5, 2016

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.



BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York Law Department
100 Church Street
New York, N.Y. 10007

Police Officer Joseph Reyes (Tax # 955373)
75th Police Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Lalehan Singh (Tax # 955499)
75th Police Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

Sergeant Thomas Massei (Tax # 942096)
75th Police Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
DAVID JOHNSON.

Plaintiff.

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
JOSEPH REYES (Tax # 955373), POLICE OFFICER
LALEHAN SINGH (Tax # 955499), POLICE SERGEANT
THOMAS MASSEI (Tax # 942096) and POLICE
OFFICERS JOHN DOE 1-10.

Defendants.

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DAVID JOHNSON (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK,
POLICE OFFICER JOSEPH REYES (Tax # 955373), POLICE OFFICER LALEHAN
SINGH (Tax # 955499), POLICE SERGEANT THOMAS MASSEI (Tax # 942096) and
POLICE OFFICERS JOHN DOE 1-10 (collectively referred to as "the defendants"),
upon information and well founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to
the plaintiff under color of statute, ordinance, regulation, custom;
and/or to redress the deprivation of rights, privileges, and immunities
secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth
Amendments to the Constitution of the United States; and by Title 42
U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and
statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is a resident of the City of New York, who resides in
Kings County, City and State of New York. Plaintiff is an African
American male of full age.

3. At all relevant times, defendants POLICE OFFICER JOSEPH REYES (Tax # 955373), POLICE OFFICER LALEHAN SINGH (Tax # 955499), POLICE SERGEANT THOMAS MASSEI (Tax # 942096) and POLICE OFFICERS JOHN DOE 1-10 of the New York City Police Department (hereinafter "defendant officers"), upon information and belief, were and still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").
4. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officer, through its Police Department, namely NYPD, and the actions of the defendant officer complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on December 23, 2015, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued

against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2015PI001163.

8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.

This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the malicious prosecution claim is based.

FACTUAL ALLEGATIONS

9. On or about October 30, 2015, at approximately 10:45 p.m., the plaintiff was unlawfully arrested on the sidewalk adjacent to the premises described as 731 New Jersey Avenue, Brooklyn, N.Y. 11207 ("subject premises") by the defendant officers.
10. That prior to the incident, at approximately 09:30 p.m., the plaintiff had arrived at the subject premises to attend a get-together at the subject premises that he had been invited to.
11. That immediately prior to the time of his arrest, the plaintiff was standing on the sidewalk outside of the subject premises, talking and socializing.
12. That as he was doing so, an NYPD van within which were two NYPD officers drove by and stopped by the curb adjacent to the plaintiff and the other persons that were on the sidewalk in front of the subject premises, following which one of the officers asked "how are you guys doing?".
13. At that juncture, one of the male persons who was standing on the sidewalk walked into the subject premises and shut the door behind him. The two NYPD officers in the NYPD van then exited the van, ran towards the front entrance/door of the subject premises, and attempted to enter into the premises.

14. However, the resident/owner of the premises identified himself as such, and refused to permit the NYPD officers who were in the NYPD van to enter into the subject premises.
15. The two NYPD officers who were in the NYPD van then requested for back-up, following which numerous NYPD officers arrived at the scene.
16. Upon arrival at the scene, the NYPD officers forcibly entered into the subject premises without a warrant. Upon information and well founded belief, the officers then claimed that they had recovered a weapon within the subject premises.
17. At that juncture, the respondent officers arrested numerous persons, including the plaintiff, who at all pertinent times was outside on the sidewalk adjacent to the subject premises.
18. Following his arrest, the plaintiff was transported to the 75th precinct where he was processed, or otherwise fingerprinted and photographed. The defendant officers prepared paperwork wherein they charged the plaintiff with criminal possession of a weapon.
19. At approximately 11:00 a.m. on November 1, 2015, the plaintiff was transported to "central booking", situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn, New York 11201, where he was again fingerprinted and photographed.
20. At approximately 09:00 p.m. on November 1, 2015, the plaintiff was released from custody, after the Kings County District Attorney declined to prosecute him. The claimant's arrest number was "K15683156".

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983 and NEW YORK STATE LAW

21. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 20 of this complaint as though fully set forth herein.

22. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
23. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
24. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.
25. The defendants were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.
26. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

27. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 26 of this complaint as though fully set forth herein.
28. Each and every individual defendant had an affirmative duty to intervene on plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
29. The individual defendants failed to intervene on plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
30. As a consequence of said defendants' actions, plaintiff suffered loss of liberty, personal injuries, humiliation, mental anguish, depression,

and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: ASSAULT AND BATTERY

31. Plaintiff repeats and realleges paragraphs 1 through 30 as if each paragraph is repeated verbatim herein.
32. As set forth above, the defendants assaulted plaintiff, battered plaintiff, and subjected plaintiff to excessive force and summary punishment.
33. The defendants were at all material times acting within the scope of their employment.
34. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendants, individually and severally.
35. The defendants were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.
36. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
August 5, 2016

LAW OFFICES OF WALE MOSAKU, P.C.

By:

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:

DAVID JOHNSON.

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER
JOSEPH REYES (Tax # 955373), POLICE OFFICER
LALEHAN SINGH (Tax # 955499), POLICE SERGEANT
THOMAS MASSEI (Tax # 942096) and POLICE
OFFICERS JOHN DOE 1-10,

Defendants.

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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
August 5, 2016

LAW OFFICES OF WALE MOSAKU, P.C.

BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

Index No.

DAVID JOHNSON,

Plaintiff(s) ,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JOSEPH REYES (Tax # 955373), POLICE OFFICER
LALEHAN SINGH (Tax # 955499), POLICE SERGEANT
THOMAS MASSEI (Tax # 942096) and POLICE
OFFICERS JOHN DOE 1-10,

Defendant(s) .

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 201_

Attorney(s) for Defendant(s)
